

BILL NO. 54 OF 1987

A Bill further to amend the Constitution of India.

BE it enacted by Parliament in the Thirty-eighth Year of the Republic of India as follows:—

1. (1) This Act may be called the Constitution (Fifty-seventh Amendment) Act, 1987.

Short
title
and com-
mence-
ment.

(2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2. After article 371H of the Constitution, the following article shall be inserted, namely:—

Insertion
of new
article
371-I.

“371-I. Notwithstanding anything in this Constitution, the Legislative Assembly of the State of Goa shall consist of not less than thirty members.”.

Special
provision
with res-
pect to the
State of
Goa.

STATEMENT OF OBJECTS AND REASONS

The Government of India have proposed to constitute the territories comprised in the Goa District of the Union territory of Goa, Daman and Diu as the State of Goa and the territories comprised in the Daman and Diu districts of that Union territory as a new Union territory of Daman and Diu. In this context, it is proposed that the Legislative Assembly of the new State of Goa shall consist of forty members. The existing Legislative Assembly of the Union territory of Goa, Daman and Diu has thirty elected members and three nominated members. It is intended to make this Assembly with the exclusion of two members representing Daman and Diu Districts, the provisional Legislative Assembly for the new State of Goa until elections are held on the expiry of the five year term of the existing Assembly. It is therefore, proposed to provide that the Legislative Assembly of the new State of Goa shall consist of not less than thirty members.

2. In order to give effect to the above proposal, it is necessary to make a special provision in the Constitution. This Bill accordingly seeks to amend the Constitution. A separate Bill for the re-organisation of the existing Union territory of Goa, Daman and Diu so as to form the new State of Goa is also being introduced.

NEW DELHI;
The 6th May, 1987.

BUTA SINGH.